

22STCV34504 22STCV34504

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-08-14

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Case Number: 22STCV34504 Hearing Date: August 14, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: August 14, 2026

Case Name: Olson v. LACMTA , et al.

Case No.: 22STCV34504

Matter: Motion to Set Aside Dismissal

Ruling: The Motion is granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On June 11, 2026, the Court dismissed this action without prejudice and retained jurisdiction pursuant to CCP § 664.6.

Plaintiff Roberta Olson now seeks to set aside the dismissal of this action. Plaintiff seeks to appoint a successor in interest following her death so as to execute the parties' settlement agreement.

The discretionary provision of Code Civ. Proc. § 473(b) provides, "The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief . . . shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken." The

statute is liberally construed in order to give effect to the policy favoring resolution of disputes on their merits. (Hopkins & Carley v. Gens (2011) 200 Cal.App.4th 1401, 1410.) To be entitled to relief under the statute, the moving party must demonstrate a satisfactory excuse for his or her default, as well as diligence in seeking relief after discovery of the default. Whether the moving party has carried this burden is a question to be resolved in the discretion of the trial court. (Ibid.)

For relief to be warranted, any mistake must be something other than professional incompetence or ignorance of the law. (Hearn v. Howard (2009) 177 Cal.App.4th 1193, 1206.) The term "surprise" refers to "some condition or situation in which a party is unexpectedly placed to his injury, without any default or negligence of his own, which ordinary prudence could not have guarded against." (Ibid., internal quotations omitted.) Similarly, to be excusable, a litigant's inadvertence or neglect must have been "such as might have been the act of a reasonably prudent person under the same circumstances." (Ibid.)

No opposition was filed.

Based on the moving papers, the Motion to Set Aside Dismissal is granted.

Moving party to give notice.